

Consent to facial recognition in fitness center was valid

Date: 03-07-2024

Decision

Private companies

Criticism

Complaint

Access control

Processed by the Data Council

Fundamental principles

The Data Protection Agency has made a decision in a case regarding a fitness center's use of facial recognition, including whether the fitness center's other access options could be considered sufficient alternatives.

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Summary

The Data Protection Agency received a complaint from a citizen regarding the fitness center Sporting Health Club (SHC) implementing facial recognition in connection with SHC's fitness centers. The citizen pointed out, among other things, that there were not sufficient and equivalent alternatives to facial recognition.

It emerged from the case that users of the fitness center who do not wish to consent to facial recognition can be let in by the reception during staffed opening hours. Outside of staffed opening hours, users can contact the 24/7 support, which can either remotely unlock the door or generate a code for the door.

In a previous case regarding FysioDanmark Hillerød, the Data Protection Agency assessed that the use of facial recognition as an access option to fitness centers does not in itself violate the fundamental principles of the General Data Protection Regulation's Article 5, including the requirements for proportionality.

The present case primarily raised questions about the requirements for consent, including whether the possible alternatives in the specific case could be considered a real alternative.

The Data Protection Agency found – after the case was processed at a meeting of the Data Council – that SHC can obtain valid consent, which can constitute an exception to the prohibition on processing special categories of data, provided that SHC ensures that the consent is informed and correctly obtained.

The Data Protection Agency expresses criticism

However, the Data Protection Agency found grounds to express criticism of the consent that the fitness center specifically attempted to obtain from the complainant, as the complainant had been informed that there were no alternatives to facial recognition.

Decision

The Data Protection Agency hereby returns to the case, where the complainant on February 19, 2023, complained to the agency about Sporting Health Club Scandinavia ApS's (SHC) use of facial recognition, including SHC's collection of consent for the processing of personal data.

The Data Protection Agency notes for the sake of good order that the agency, with this decision, has only addressed the questions mentioned in the decision.

1. Decision

The Data Protection Agency finds – after the case has been processed at a meeting of the Data Council – that SHC, if SHC ensures that the consent obtained by SHC is informed, obtains valid consent, which under the General Data Protection Regulation's Article 9, paragraph 2, letter a, can constitute an exception to the prohibition on processing special categories of data.

However, the Data Protection Agency finds that there are grounds to express criticism that the consent that SHC specifically attempted to obtain from the complainant was not voluntary and thus not valid.

2. Circumstances of the case

2.1.

The Data Protection Agency received a complaint on February 19, 2023, regarding the fitness center SHC implementing facial recognition as access control to the company's fitness centers.

In the complaint dated February 19, 2023, it is stated that:

"I hereby submit a complaint regarding the use of facial recognition and improper handling of consent at the training center Sporting Health Club. Sporting Health Club Scandinavia has opened 24/7. Until now, access has been with a key chip, but that option no longer exists, and facial recognition is thus the only access key during the center's unstaffed hours. The consequence of not consenting to facial recognition is that the ability to use the center is restricted. Since there are no alternatives to facial scanning as an access key, I am critical of whether the circumstances surrounding consent meet the conditions for free consent, whether there is valid legal authority to manage consent in this way, and whether the use of biometric data is therefore legal.

[...]

The center is open 24/7 for members. There are staffed opening hours on weekdays and Saturdays, but outside of the staffed opening hours (late evening, Sundays, and holidays), one can enter with a key. [...]

Until the summer of 2022, the key was a chip. In the summer of 2022, the center began to implement facial recognition, which from the summer of 2022 until now has functioned alongside the key chip. SHC announced in early February 2023 that it would no longer be possible to use the chip and that access would henceforth only be possible using facial recognition. If one does not consent to the use of facial recognition, the use of the membership will be limited to the staffed opening hours. [...]

I wish to use the center without restrictions. Consent can only be regarded as real consent if it is given without pressure and without negative consequences for saying no to giving consent. I am a member of this center precisely because they have access 24/7."

In the complaint dated February 19, 2023, it is further stated regarding the case proceedings:

****Translation of Legal Document:****

In July 2022, I was verbally informed by the center's daily manager that the chip key would be replaced by facial recognition, and that I would need to register in the system for that, which I declined. I was told that the chip key would still work for some time, and they would investigate what other access options would be available thereafter for those who did not wish to consent to facial recognition. Later that same week, I wrote to remind them of the issue. I did not receive a response and therefore assumed that SHC had reconsidered the situation and decided to have the two systems running concurrently. The chip reader continued to be in use, and I did not hear anything further on the matter.

In February 2023, the center sent an email to the members stating that the chip function would not be in use after March 1, 2023. I requested a response regarding how they would handle members who did not wish to consent to facial recognition and reminded them that I had previously made my objections clear.

On the evening of February 2023, I visited the center and discovered that the chip reader had been removed, and my access to the center had thus been restricted. SHC's notice was therefore not complied with, and it was, moreover, a shorter notice than the 75 days stipulated in the membership terms.

As an attachment to the complaint dated February 19, 2023, the complainant has included an email correspondence with SHC. In the correspondence, an employee of SHC states: "If a member does not wish to consent to facial recognition, it is only possible to train in our centers during staffed opening hours. If one trains at Scandinavia, for example, one must use the doorbell, and the receptionist will then open for you."

2.2. The Data Protection Authority requested SHC for a statement for the processing of the case on May 11, 2023, including regarding the issue of consent, which the law firm Elmann sent on behalf of SHC on June 8, 2023. The statement states:

"RE. 1. SHC IS REQUESTED TO ADDRESS WHAT THE COMPLAINANT HAS STATED IN HER COMPLAINT. The complainant has, by letter dated February 19, 2023 ("Complaint"), complained about SHC's handling of her personal data. There are several factual circumstances in the Complaint that are not correct. The complainant is, as is known, a member of SHC. Until March 1, 2023, SHC

used a key fob as access control to the center along with an access system with facial recognition/scanning provided by Justface ApS. Since March 1, 2023, the facial recognition/scanning system has acted as access control to the center, along with the option for either personal check-in at the reception, personal check-in via 24-hour phone support, or by using a code. It can thus be rejected that facial recognition/scanning is the only access option to the center. This applies both during and outside of the reception's opening hours. SHC has since entering into cooperation with Justface provided alternative access methods for members who do not wish to use facial recognition/scanning as access control. SHC also informs its members about the use of personal data in connection with facial recognition/scanning via their privacy policy. SHC's privacy policy is available on SHC's website [...].

Code: If a member does not wish to use facial recognition/scanning, it is possible to open the door using a code. Each member can generate a code by calling support. This code must be generated anew for each visit and cannot be reused due to the risk of fraud. There is the possibility of obtaining a code for the center at any hour of the day (24/7).

Door opening via support: Members can call support at any hour of the day (24/7), which can open the door if the member is found in the member database. The number for support is clearly displayed at the access path to the center.

Check-in via reception: During the reception's opening hours, one can check in at the reception via personal service.

Image [1]: Screenshot of access solution in SHC Scandinavia, where the code alternative is clearly visible under the button for facial scan: [...]

Image [2]: Access solution installed to the right of the entrance gate in SHC Scandinavia with clear and distinct reference to support: [...]

Justface facial scan: SHC uses a system licensed from Justface ApS for facial recognition/scanning.

Consent: The Justface system is consent-based. It works in such a way that SHC's members have the option to choose to use facial scanning if consent has been given. A tablet has been set up at the entrance to the fitness center. If a member has given their consent during registration, the member uploads a picture into the system so that the system can recognize the person when they later choose to be scanned by the camera in the tablet at the entrance to the fitness center. Members who have not given consent to use the Justface system and/or individuals who withdraw their consent can use another form of access control, e.g., manual personal check-in, check-in at the reception, or use of an access code, as mentioned above.

Activation: The facial recognition/scanning system consists of a tablet placed at the entrance door to the fitness center, which is in "passive mode" and must be activated by pressing the screen. The camera is set up in such a way that upon activation, it can only record the person who has activated it. Thus, there is no facial scanning of members or other individuals approaching the entrance of the fitness center until the member themselves takes an active action to activate the facial scanning.

If the person does not wish to be facially scanned, they can use an alternative access method, such as a password, checking in at the reception, or manual check-in via a 24-hour phone. This can be seen, among other things, on the tablet screen and labels.

Members who do not wish to be scanned have a real opportunity to avoid facial scanning by using phone support for check-in or the reception.

The facial recognition/scanning system is designed so that the system must be activated for a scan to take place, e.g., by pressing a button.

[...]

The purpose of using the system – and the resulting processing of personal data – is firstly to offer members the use of the system as access control for increased security, so that only members have access to the center, and to provide members with a better user experience.

The processing of biometric data (facial recognition) in connection with access control is based on the member's consent, cf. Article 9, paragraph 2, letter a of the General Data Protection Regulation. Consent is given when the member is to be registered in the system – either physically at the center or online. In this connection, a picture of the person's face is uploaded to the system. Additionally, the individual consents via an electronic consent form to the processing taking place.

In addition to access control, the system is used to collect check-in times for customers for statistical purposes, e.g., for staff allocation in relation to the fitness center's peak periods (as is also known from other types of access systems with, for example, chips or key cards). Information regarding the number, type, and time of check-ins is collected solely for statistical purposes and for business optimization, in accordance with Article 6, paragraph 1, letter f of the General Data Protection Regulation.

[...]

SHC does not process members' personal data, including biometric data, unless the data subject has specifically and explicitly given their consent to such processing, cf. Article 6, paragraph 1, letter a and Article 9, paragraph 2, letter a of the General Data Protection Regulation.

In accordance with Article 4, number 11 and Article 7 of the General Data Protection Regulation, the following is noted regarding the consent declaration used (a picture of the consent declaration can be found below):

The consent declaration is presented on the onboarding page, where the member must log in (a picture of the onboarding page can be found below). The consent declaration is formulated in an easily understandable and accessible form and in clear and simple language, so that the member can distinguish the consent from other matters and understands how and for what purposes the collected personal data is processed.

It follows from the consent declaration that consent is given voluntarily. The member thus has the option to choose to give their consent or not. There are no negative consequences associated with not giving consent, as the member can instead choose one of the other check-in options, including manually via reception/24-hour support or by using a password.

The member is thoroughly informed in the consent declaration about the specific purposes of the consent and must check separate consent boxes for each purpose. Thus, the giving of consent occurs through an active action and reflects an explicit expression of will from the member.

It follows from the consent declaration that the data subject has the right to withdraw their consent at any time. Withdrawal of consent requires contacting the specified Justface support email, which ensures that the withdrawal of consent is as easy for the member as giving their consent. The consent declaration is also stored by SHC in accordance with Article 5, paragraph 1, letter e, Article 5, paragraph 2, and Article 7 of the General Data Protection Regulation, so that SHC can demonstrate that the data subject has given consent to the processing of their personal data.

Based on the above, SHC assesses that obtaining consent from SHC's members meets the validity requirements in Article 4, number 11, Article 6, Article 7, and Article 9 of the General Data Protection Regulation.

2.3.

On July 12, 2023, the complainant submitted their comments to SHC's statement. It appears from this: "SHC writes that there has been and always has been the option to opt-out of consent for facial recognition without affecting access to the center. I am missing documentation that SHC has communicated this to all members in a timely manner. SHC's privacy policy in the link in the letter of June 8 is from May 2023.

As stated in my complaint of February 19, there was no information in emails and the consent declaration about other options than facial recognition. I was told both verbally and in writing that there would only be access during the reception's opening hours [...]. From February until now, I have visited the center 3-4 times a week. Each time I have rung the bell and been let in by the staff. I have primarily encountered the same 3-4 people, including the daily manager of the center. None of them have informed me that I had other options, not even the times I have..."

the use of biometric data are compliant with applicable laws and regulations.

2.4.

On November 8, 2023, the law firm Elmann, on behalf of SHC, submitted the final statement in the case. It states:

"As indicated in SHC's response to the Complainant's inquiry to the Data Protection Authority, which was submitted on June 8 of this year, the consent given is specific and unequivocal.

A link to the consent form is included as mentioned in the enrollment procedure, and the Complainant was also asked under the same consent terms to indicate whether they wished to give consent. See the link to the 'onboarding' sent to the Complainant by email on February 1, 2023.

It is specifically stated both on the first page of the description of the 'onboarding' process and in the consent declaration sent to the Complainant that this is a voluntary consent, which can be revoked at any time.

It is therefore an error when the relevant SHC employee informed the Complainant in an email on February 6, 2023, that it would only be possible to train during the reception's opening hours if a member does not give consent to facial recognition.

If a member does not wish to give consent to the use of facial recognition, SHC, as previously mentioned, provides members with several alternative options for accessing SHC's premises, including using a code, remote opening via 24/7 support, and check-in via reception during staffed hours. This has been and continues to be indicated both on the service panel at the entrance door and by information from the staff, who are happy to open the door for members during reception hours. Information about this is also included in the privacy policy published by SHC [...], where it is stated: "If you do not wish for biometric information to be stored, individuals can enter by calling JustFace's 24-hour service at 76741265."

It is correct (as also stated by the Complainant) that the privacy policy is continuously updated, with the latest update in May 2023. However, the above information is not new, and the information about access using a code on the tablet at the entrance door and check-in via staff during reception hours has been available since the implementation of the JustFace access system on March 1, 2023, which is also evident from section 7.3 of the privacy policy.

Furthermore, since the implementation of the JustFace access system, SHC has continuously trained its staff on the processing of personal data, including the company's privacy policy and the rules for consent.

In light of the ongoing complaint case and the erroneous information that was sent to the Complainant, SHC has now emphasized to its staff that members who do not wish to use facial recognition as access control must always be informed about the alternative ways to gain access to SHC's premises. This is first indicated in the attached FAQ, which the employees received in March 2023 and which employees can send to members upon request. It states:

"Do I have to use facial scanning? Only if you give consent. There is always an alternative on the training center's tablet, such as using a code. Contact your center if you want to know more."

Furthermore, it is now stated in SHC's employee/training manual that there are alternative access methods, ensuring that correct information is provided by employees to members as much as possible: "If access via facial recognition (storing biometric information) is not desired, the member can call JustFace's 24-hour service at phone number 76741265. Through JustFace's 24-hour service, the door will be opened or a one-time code will be provided to the member who wishes to gain access. This is only possible if the member has an active membership, without arrears, suspension, or other conditions that result in inactivity of an SHC membership."

It can thus be concluded that there are alternative usable access methods for access control alongside the facial recognition system.

SHC therefore continues to assess that the facial recognition system and the processes related to the use of biometric data are compliant with applicable laws and regulations.

****Consent Declaration****

The granting of consent is an expression that consent is given voluntarily...

[...]

To address the principle of proportionality, the system is designed in such a way that "activation" of the

system only occurs when the customer or employee who wishes to have a facial scan has activated the system. Members who do not wish to be scanned have a real opportunity to avoid facial scanning.

****3. Justification of the Data Protection Agency****

****3.1. Relevant Legal Provisions****

The General Data Protection Regulation (GDPR) applies, according to Article 2, paragraph 1, to the processing of personal data that is wholly or partly carried out by means of automated data processing, and to other non-automated processing of personal data that is or will be contained in a register.

According to Article 6, paragraph 1 of the GDPR, processing is only lawful if and to the extent that at least one of the conditions in point (a) of the provision applies. For example, processing is lawful, according to point (a) of the provision, if the data subject has given consent to the processing of their personal data for one or more specific purposes.

According to Article 9, paragraph 1 of the GDPR, there is a prohibition on the processing of special categories of data, including the processing of biometric data for the purpose of uniquely identifying a natural person.

Biometric data is understood, according to Article 4, number 14 of the GDPR, as personal data that, as a result of specific technical processing concerning the physical, physiological, or behavioral characteristics of a natural person, enables or confirms the unique identification of that person, e.g., facial images or fingerprint data.

Consent as referred to in Article 6, paragraph 1, point (a), and Article 9, paragraph 2, point (a) of the GDPR is understood, according to Article 4, number 11, as any voluntary, specific, informed, and unambiguous indication of the data subject's wishes, by which the data subject, by declaration or clear confirmation, agrees to the processing of personal data concerning them.

Article 7 of the GDPR contains a number of conditions for consent. It states:

****Paragraph 1.**** If processing is based on consent, the data controller must be able to demonstrate that the data subject has given consent to the processing of their personal data.

****Paragraph 2.**** If the data subject's consent is given in a written declaration that also concerns other matters, the request for consent must be presented in a manner that is clearly distinguishable from the other matters, in an easily understandable and accessible form, and in clear and plain language. Any part of such a declaration that constitutes a breach of this regulation is not binding.

****Paragraph 3.**** The data subject has the right to withdraw their consent at any time. The withdrawal of consent does not affect the lawfulness of processing based on consent before its withdrawal. Before consent is given, the data subject must be informed that consent can be withdrawn. It must be as easy to withdraw consent as it is to give it.

****Paragraph 4.**** In assessing whether consent is freely given, the greatest possible consideration shall be given to, among other things, whether the fulfillment of a contract, including a service, is made conditional on consent to the processing of personal data that is not necessary for the fulfillment of that contract.

Any processing of personal data must – in addition to having a basis in Articles 6 & 9 of the GDPR – be carried out in accordance with the principles for processing personal data in Article 5. This means that personal data must:

- be processed lawfully, fairly, and in a transparent manner in relation to the data subject ("lawfulness, fairness, and transparency")
- be collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes; further processing for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes in accordance with Article 89, paragraph 1, shall not be considered incompatible with the original purposes ("purpose limitation")
- be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ("data minimization")
- be accurate and, where necessary, kept up to date; every reasonable step must be taken to ensure that personal data that is inaccurate in relation to the purposes for which it is processed is erased or rectified without delay ("accuracy")

- be kept in a form which permits identification of data subjects for no longer than is necessary for the purposes for which the personal data are processed; personal data may be stored for longer periods if the personal data are only processed for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes in accordance with Article 89, paragraph 1, provided that appropriate technical and organizational measures are implemented as required by this regulation to safeguard the rights and freedoms of the data subjects ("storage limitation")
- be processed in a manner that ensures adequate security of the personal data in question, under protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures ("integrity and confidentiality").

3.2. The Data Protection Authority's Practice

In the spring of 2022, the Data Protection Authority made a decision regarding a fitness center's use of facial recognition (Data Protection Authority case no. 2021-431-0145). In the decision, the Data Protection Authority stated, among other things:

"When personal data in the form of images is processed in connection with facial scanning, there is processing of biometric data, cf. Article 4, no. 14 of the General Data Protection Regulation (GDPR). FysioDanmark has stated that the system operates in such a way that a camera is set up at the entrance to the fitness center, which can scan the customer's face, after which the result is compared to images already uploaded in the system.

Thus, there is a comparison of biometric information about the relevant customer (collected at the time of identification) with a number of biometric templates stored in a database. There are thus one or more matching processes, and therefore, it is a matter of processing biometric data with the purpose of uniquely identifying a natural person.

As a general rule, it is prohibited to process such information, cf. Article 9, paragraph 1 of the GDPR, unless an exception to this prohibition can be identified in paragraph 2 of the provision. The Data Protection Authority agrees with FysioDanmark that the customer's explicit consent, cf. Article 9, paragraph 2, letter a of the GDPR, is the most appropriate exception to the prohibition, as none of the other exceptions in Article 9, paragraph 2 of the GDPR appear to be applicable.

The Data Protection Authority assumes that FysioDanmark, by using the customer's explicit consent, will observe the obligations under Article 7 of the GDPR, and as a result, the Authority finds no basis to override FysioDanmark's assessment that the consent given by the data subject in this context complies with the rules for consent in the GDPR, including the requirement that consent must be voluntary as stated in Article 4, no. 11 of the GDPR.

In this regard, the Data Protection Authority has emphasized the design and content of the submitted consent declaration, and that it is optional for the customer whether they wish to use facial recognition as access control, as the customer – if they do not wish to use facial recognition – can instead use access cards and codes."

The Data Protection Authority's decision can be found in its entirety on the Authority's website by searching for "FysioDanmark."

3.3. Guidance from the Data Protection Authority and the European Data Protection Board (EDPB)

3.3.1. Data Protection Authority's Guidance on Consent

According to the Data Protection Authority's guidance on consent from May 2021, which is based on the EDPB's guidelines 5/2020, it is stated regarding the requirement of voluntariness that:

"A consent must be voluntary. The purpose of consent is to give data subjects a choice and, not least, control over personal data about themselves. Consent is therefore not considered to be given voluntarily if the data subject does not have a real or free choice. For example, consent must not be given under duress. This applies regardless of whether it is the data controller or others who exert pressure on the data subject.

Any form of inappropriate pressure or influence on the data subject's free will renders the consent invalid."

Furthermore, it is stated regarding the requirement of voluntariness that:

"A data controller can to some extent motivate data subjects to give consent by offering a benefit associated with giving consent. Enrollment in a business's loyalty program may, for example, involve

discounts that motivate the customer to consent to receive promotional material from the business. The discount or benefits that consent to a loyalty program entails do not exclude that the consent can be considered voluntary.

However, it is important to be aware of whether a lack of consent results in negative consequences for the data subject who does not wish to give consent – for example, in the form of additional costs..."

Regarding the requirement of informed consent, it is stated that:

"A consent must be informed. This means that the data subject must be aware of what they are consenting to. The data controller must provide the data subject with a number of information that ensures that the data subject can make their decision on an informed basis. There are no formal requirements for how this information must be provided. It is thus possible to meet the requirement both in writing, orally, or digitally."

The Data Protection Authority's guidance on consent can be found in its entirety on the Data Protection Authority's website.

3.3.2. EDPB Guidelines on the Use of Video Equipment for Processing Personal Data

According to the EDPB's guidelines 3/2019 on the use of video equipment for processing personal data, it is stated regarding consent for the processing of biometric data:

"Finally, it applies that when consent is required under Article 9 of the GDPR, the data controller must not make access to its services conditional on the acceptance of biometric processing. In other words, and particularly when biometric processing is used for authentication purposes, the data controller must offer an alternative solution that does not involve biometric processing – without restrictions or additional costs for the data subject. This alternative solution is also necessary for individuals who do not meet the requirements for the biometric equipment (registration or reading of biometric data impossible, disability complicates its use, etc.),

and if the biometric equipment is not available (e.g., due to a malfunction of the device). In such cases, an "alternative solution" must be used to ensure the continuity of the intended service, which is, however, limited to extraordinary use. In special cases, there may be a situation where the processing of biometric data is the central activity in a service contract, for example, if a museum organizes an exhibition demonstrating the use of a facial recognition system. In that case, the registered individuals will not be able to refuse the processing of biometric data if they wish to visit the exhibition. The consent required under Article 9 remains valid in such cases if the requirements of Article 7 are met.

3.4. The Data Protection Authority's assessment of the specific case

The case concerns the fitness center SHC implementing facial recognition as access control to the company's fitness centers, including SHC's obtaining of consent for the processing of personal data in this connection.

The Data Protection Authority has previously assessed in the case concerning FysioDanmark (indirectly) that the use of facial recognition as access control to fitness centers cannot in itself be considered contrary to the fundamental principles of the General Data Protection Regulation (GDPR) Article 5, including the requirements for proportionality.

Consequently, the Data Protection Authority finds that SHC – provided that the conditions for lawful processing are otherwise met – may similarly use facial recognition as access control to its fitness centers. The Data Protection Authority has also emphasized that the processing occurs based on consent, as discussed below, and that the registered individual therefore has a choice regarding – and control over – whether facial recognition occurs and the associated processing of information.

The case raises a number of general questions regarding the requirements for consent, including whether the possible alternatives in the specific case can be considered a genuine alternative.

Furthermore, the case raises questions about consent in relation to complaints.

3.4.1. Is the consent generally valid?

When personal data in the form of images is processed in connection with facial scanning, there is processing of biometric data, cf. GDPR Article 4, No. 14.

It appears from the case that the system operates in such a way that a camera is set up to scan the customer's face, after which the result is compared with images already uploaded in the system.

Thus, there is a comparison of biometric information about the specific customer (collected at the time of identification) with a number of biometric templates stored in a database. Therefore, one or more matching processes occur, and there is thus processing of biometric data with the purpose of uniquely identifying a natural person.

As a general rule, it is prohibited to process such information, cf. GDPR Article 9, paragraph 1, unless an exception to this prohibition can be identified in paragraph 2 of the provision.

The Data Protection Authority has noted that SHC has arranged the system so that it must be activated for a scan to take place, e.g., by pressing a button, and that therefore there is no (illegal) processing of information about individuals who have not consented to facial recognition.

The Data Protection Authority agrees with SHC that explicit consent, cf. GDPR Article 9, paragraph 2, letter a, is the most appropriate exception to the prohibition, as none of the other exceptions in GDPR Article 9, paragraph 2, appear to be applicable.

For explicit consent under GDPR Article 9, paragraph 2, letter a, and Article 6, paragraph 1, letter a, to be valid, it must, according to GDPR Article 4, No. 11, be, among other things, voluntary.

Consent cannot be considered voluntary if the procedure for obtaining consent does not allow the registered individual to give separate consent for different processing purposes regarding personal data, thereby forcing the registered individual to consent to all purposes. Consent must therefore be granular (divided).

It has been stated in the case that SHC – in addition to processing biometric data in connection with access control – collects information via the system for statistical purposes, including check-in times for customers. In this connection, SHC has stated that this processing occurs based on the so-called balancing of interests rule in GDPR Article 6, paragraph 1, letter f.

The Data Protection Authority agrees with SHC that the information about when a customer checks in is, in itself, information that is solely covered by GDPR Article 6.

However, the Data Protection Authority is of the opinion that this information has the character of "derived" information, as the information (under certain circumstances) is provided using facial recognition.

Therefore, for this processing as well, there is processing of biometric data with the purpose of uniquely identifying a natural person covered by the prohibition in GDPR Article 9, paragraph 1.

For consent to be valid, SHC must thus have granularized the consent so that consent can be given both for the processing of biometric data as part of access to the fitness center and for the use of facial scanning to conduct the mentioned statistics.

The Data Protection Authority has noted that SHC provides the option for individuals to consent to both "use of facial scanning as an access method" and "use of facial scanning to conduct statistics." the use of the fitness center."

The Data Protection Agency finds that the consent obtained by SHC is sufficiently granular. However, SHC should consider clarifying in the consent declaration what "statistics on the use of the fitness center" encompasses.

In continuation of this, the Data Protection Agency finds reason to note that SHC – regardless of whether SHC bases its processing on Article 6, paragraph 1, letter f – cannot use "derived" information obtained through facial recognition unless SHC has explicit consent for this in accordance with Article 9, paragraph 2, letter a.

When it comes to the use of consent in connection with facial recognition, it is furthermore the Data Protection Agency's opinion – in accordance with what is stated in the EDPB guidelines 3/2019 – that the requirement for voluntariness in a case like this implies that data controllers – in this case SHC – must offer an alternative solution that does not involve the processing of biometric data.

This alternative does not have to be identical but must not involve non-negligible limitations or costs for the data subject.

It is the Data Protection Agency's assessment that the ability to check in at the reception through personal service during the reception's opening hours cannot in itself be considered a corresponding alternative, as this limits access to the center compared to if one consents to facial recognition.

As SHC has explained, SHC provides the option, for those who do not wish to consent to facial recognition, to – in addition to the possibility of checking in at the reception through personal service –

call support, which can open the door, and that one can generate a code by calling support.

Since the alternative options (generating a code or calling support) provide the same access to the center as consenting to facial recognition, and since the alternative options are not associated with significant limitations or financial costs, the Data Protection Agency finds that SHC offers sufficient alternatives.

The Data Protection Agency assumes in this context that these are real alternatives, including that one should not have to wait an unreasonable amount of time to get through to support to generate a code or be let in.

As the case regarding the question this case concerns (access for customers) does not give the Data Protection Agency reason to question the voluntariness of the consent, the Data Protection Agency finds that SHC obtains voluntary consent.

The Data Protection Agency notes in this context that the question of any consent from employees is not part of this case, and therefore the Agency has not taken a position on this. The Data Protection Agency can refer to the Agency's decision in the case concerning FysioDanmark for considerations regarding this.

In addition to being voluntary, consent must also be informed. This means that the data subject must be aware of what they are consenting to. This entails that the data controller must provide the data subject with a range of information to ensure that the data subject can make their decision on an informed basis.

In a situation such as the present, it is the Data Protection Agency's opinion that the requirement for consent to be informed implies that the data subject must be informed about the alternatives to consenting to facial recognition.

The Data Protection Agency has found that SHC has made certain efforts to do this, among other things on the information screens at the entrance to the fitness centers and in the company's privacy policy.

As the case stands, however, it is the Data Protection Agency's assessment that the information about the alternatives that SHC provides appears to be somewhat fragmented. For example, the data subject themselves must find further information about the possible alternatives in the privacy policy, just as the data subject must deduce what "code" and the reference to support cover on the information screens at the entrance to the fitness centers.

In any case, it is the Data Protection Agency's opinion that it would be most consistent with the requirements for informed consent if it were stated in connection with obtaining consent – already in the consent declaration itself – that there are alternatives, and where one can read more about these. It is noted in this context that this appears to be a relatively simple approach.

Based on the above, the Data Protection Agency concludes that SHC, if SHC ensures that the consent obtained is informed, obtains valid consent, which under Article 9, paragraph 2, letter a of the General Data Protection Regulation can constitute an exception to the prohibition on processing special categories of data.

Consequently, the consent can also serve as a basis for processing under Article 6, paragraph 1, letter a of the General Data Protection Regulation.

What has otherwise been stated regarding the case, including whether the refusal to give consent in itself is a special category of personal data, cannot lead to a different assessment of the validity of the consent or the legality of the processing in general.

3.4.2. Consent in relation to complaints?

It is – notwithstanding the above regarding the general voluntariness of consent – the Data Protection Agency's opinion that the circumstance that a complaint from an employee was informed that “[i]f [a] member does not wish to give consent to facial recognition, it is only possible to train in our centers during staffed opening hours,” must be assumed to have given the complainant a justified impression that there would be no alternatives to facial recognition.

It is, in the Data Protection Agency's assessment, equivalent to...

med, that there would be no alternatives. This means that the consent that was attempted to be obtained from the complainant at that time would not be valid. Under these circumstances, the Data Protection Authority finds grounds to express criticism that the consent which SHC specifically

attempted to obtain from the complainant was not voluntary and thus not valid. However, the complainant must be considered to be sufficiently informed about the possible alternatives at this time, which means that valid consent can be obtained.

[1] The European Data Protection Board's guidelines 5/2020 on consent under Regulation 2016/679 (version 1.1, adopted on May 4, 2020), page 13.